

Second:

The defendants argue that the second cause of action – for “Damage to Trees and Timber” – fails to state facts sufficient to constitute a cause of action. It appears to be based on Civil Code section 3346 and CCP section 733. However, both sections require a trespass, a nonconsensual entry onto the land of another. No trespass is alleged in the second cause of action. The demurrer is sustained with 21 days’ leave to amend.

Fourth:

The fourth cause of action is one for fraud, but fails to allege the facts necessary to establish fraud by intentional misrepresentation, intentional concealment, negligent misrepresentation, or false promise. Instead, it appears to repeat its contractual claims. The demurrer is sustained with 21 days leave to amend.

Seventh:

Unlike the second cause of action, the seventh cause of action does allege a trespass. However, it appears to merely repeat the allegations of the sixth cause of action. Because it does not allege a cause of action different from that alleged as the sixth cause of action, the demurrer to the seventh cause of action is sustained without leave to amend.

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CASE #	CASE NAME	HEARING NAME
CVME2502941	MAGNANDONOVAN vs NAGHIEH	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The defendants’ motion to strike is denied as to paragraphs 6 and 7 but granted without leave to amend as to paragraphs 8 through 16, 20, 22, 81 through 87, 94, 96, 100, 102, 131 through 136, 138, 139, 217, and 237.

Analysis:

The factual allegations in the enumerated paragraphs are irrelevant to the claims alleged, are evidentiary facts rather than ultimate facts, or both.